

NON-COMPETITIVE COMBINED SYNOPSIS / SOLICITATION

Title: *NCI Becton Dickinson Maintenances*

- (i) This is a combined synopsis/solicitation for commercial products or commercial services prepared in accordance with part 12. This announcement constitutes the only solicitation. Offers are being requested and a separate written solicitation will not be issued.

NON-COMPETITIVE Solicitation number **75N98026Q00288** is issued as a request for quotation (RFQ) for maintenance and service for various Government-Owned Becton Dickinson and Company Flow Cytometer Equipment.

This solicitation incorporates provisions and clauses by reference. The full text of provisions and clauses may be accessed electronically at www.acquisition.gov.

THIS IS A NON-COMPETITIVE (NOTICE OF INTENT) COMBINED SYNOPSIS SOLICITATION TO AWARD A CONTRACT OR PURCHASE ORDER WITHOUT PROVIDING FOR FULL AND OPEN COMPETITION (INCLUDING BRAND-NAME).

The Office of Mission Acquisition Solutions (OMAS), Office of Acquisition (OA), on behalf of the *National Institutes of Health (NIH), National Cancer Institute (NCI)*, intends to negotiate and award a purchase order without providing for full and open competition (including brand-name) to *Becton, Dickinson and Company, 2350 Qume Dr, San Jose, California 95131* for maintenance and service for various Government-Owned Becton Dickinson and Company Flow Cytometer Equipment.

This acquisition is conducted as non-competitive for a commercial product or commercial services and is conducted pursuant to FAR 12.201-1, Simplified Procedures in accordance with 41 U.S.C. 1901.

- (ii) This requirement is for the following services:
Maintenance and Service Contract for Government-Owned Becton Dickinson and Company (BD Biosciences) Flow Cytometers as detailed in the Statement of Work. See the attached Statement of Work – Attachment 1.
- (iii) Description of requirement:
The Contractor shall provide all labor, material, and equipment necessary to maintain and provide preventive maintenance for the Becton Dickinson equipment listed above and their associated system components such as autoloaders, lasers, and other items. See the attached Statement of Work – Attachment 1.

(iii) Period of Performance

The Government anticipates award of a **firm fixed-price purchase order** for this acquisition, and the anticipated period of performance is as follows:

Base Period: 07/02/2026 - 07/01/2027

Option Period 1: 07/02/2027 - 07/01/2028

Option Period 2: 07/02/2028 - 07/01/2029

Option Period 3: 07/02/2029 - 07/01/2030

- (v) The provisions at FAR 52.252-1, Solicitation Provisions Incorporated by Reference (Feb 1998), applies to this acquisition. This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this address:

<https://www.acquisition.gov/far-overhaul>

<https://www.hhs.gov/contract-policies-regulations/hhsar-overhaul>

(End of provision)

- a) The following FAR provisions are required by FAR 12.205(a), and incorporated by reference:
- FAR 52.212-1, Instructions to Offerors-Commercial Products and Commercial Services.

- (vi) The clauses at FAR 52.252-2, Clauses Incorporated by Reference (Feb 1998), applies to this acquisition. This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this address:

<https://www.acquisition.gov/far-overhaul>

<https://www.hhs.gov/contract-policies-regulations/hhsar-overhaul>

(End of clause)

- a) The following FAR clauses are required by FAR 12.205(b)(1) for all solicitations and incorporated by reference:

- FAR 52.212-4, Terms and Conditions—Commercial Products and Commercial Services.

- b) The following FAR clauses are required as applicable to this requirement and incorporated by reference:

- See Attachment 2- Table# 12-2
- FAR 52.217-5, Evaluation of Options (DEVIATION) (RFO SEP 2025)
- FAR 52.222-48, Exemption from Application of the Service Contract Labor Standards to

Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Certification
(DEVIATION) (RFO Nov 2025)

FAR/HHSAR PROVISIONS/CLAUSES – FULL TEXT-ADDITIONAL TERMS AND CONDITIONS

The following provisions/clauses and additional terms and conditions apply to this acquisition and are provided in FULL TEXT.

FAR 52.217-9, Option to Extend the Term of the Contract (Mar 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor within 3 days; provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least 7 days before the contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed 4 years.

(End of clause)

CPARS POST AWARD EVALUATION OF CONTRACTOR PERFORMANCE

Contractor performance will be evaluated on an interim and final basis pursuant to FAR Subpart 42.15. Interim evaluations will occur on an annual basis upon the completion of the first year of the contract. The Contractor Performance Assessment Reporting System (CPARS) will be used for these reviews. Information on CPARS is located at <http://www.cpars.gov>.

CONTRACTING OFFICERS REPRESENTATIVE (COR)

The following Contracting Officer Representative (COR) will represent the Government for the purpose of this contract:

TO BE SPECIFIED AT TIME OF AWARD

The COR is responsible for: (1) monitoring the Contractor's technical progress, including the surveillance and assessment of performance and recommending to the Contracting Officer changes in requirements; (2) interpreting the statement of work and any other technical performance requirements; (3) performing technical evaluation as required; (4) performing technical inspections and acceptances required by this contract; and (5) assisting in the resolution of technical problems encountered during performance.

The Contracting Officer is the only person with authority to act as agent of the Government under this contract. Only the Contracting Officer has authority to: (1) direct or negotiate any changes in the statement of work; (2) modify or extend the period of performance; (3) change the delivery schedule; (4) authorize reimbursement to the Contractor for any costs incurred during the performance of this contract; (5) otherwise change any terms and conditions of this contract; or (6) sign written licensing agreements. Any signed agreement shall be incorporated by reference in Section K of the contract.

The Government may unilaterally change its COR designation.

352.203-70 Anti-Lobbying (DEC 2015)

Pursuant to the HHS annual appropriations acts, except for normal and recognized executive-legislative relationships, the Contractor shall not use any HHS contract funds for:

(a) Publicity or propaganda purposes;

(b) The preparation, distribution, or use of any kit, pamphlet, booklet, publication, electronic communication, radio, television, or video presentation designed to support or defeat the enactment of legislation before the Congress or any State or local legislature or legislative body, except in presentation to the Congress or any state or local legislature itself; or designed to support or defeat any proposed or pending regulation, administrative action, or order issued by the executive branch of any state or local government, except in presentation to the executive branch of any state or local government itself; or

(c) Payment of salary or expenses of the Contractor, or any agent acting for the Contractor, related to any activity designed to influence the enactment of legislation, appropriations, regulation, administrative action, or Executive order proposed or pending before the Congress or any state government, state legislature or local legislature or legislative body, other than for normal and recognized executive-legislative relationships or participation by an agency or officer of a state, local, or tribal government in policymaking and administrative processes within the executive branch of that government.

(d) The prohibitions in subsections (a), (b), and (c) above shall include any activity to advocate or promote any proposed, pending, or future federal, state, or local tax increase, or any proposed, pending, or future requirement for, or restriction on, any legal consumer product, including its sale or marketing, including, but not limited to, the advocacy or promotion of gun control.

(End of clause)

EVALUATION

The provision of the FAR 52.212-2, Evaluation – Commercial Products and Commercial Services (DEVIATION) (RFO AUG 2025), applies to this acquisition.

(a) The Government will award a contract resulting from this solicitation to the responsible Offeror whose offer conforming to the solicitation will be most advantageous to the

Government, price and other factors considered. The following factors will be used to evaluate offers:

a) Technical capability of the item offered to meet the Government requirement;

b) Price; and

c) Past performance

Technical and past performance, when combined, are significantly more important than cost or price.

- (b) *Options.* The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. The evaluation of options does not obligate the Government to exercise the option(s).
- (c) *Notice of award.* A written notice of award or acceptance of an offer furnished to the successful Offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award. (End of provision)

The following invoice instruction is included and will be incorporated in the final award:

- Agency Invoicing Instructions (**Attachment #3**)

- (vii) **All quotes must be received by 1:00 p.m., Eastern Daylight Time, on Monday, May 18, 2026, and reference Solicitation Number 75N98026Q00288. Quotes must be submitted electronically to Sieaun Marks at sieaun.marks@hhs.gov and Valerie Whipple at valerie.whipple@hhs.gov.**

A determination by the Government whether to compete this proposed contract based upon responses to this notice is solely within the discretion of the Government. Information received will be considered to determine whether to proceed on a non-competitive basis as indicated above, or to conduct a competitive procurement.

- (viii) The following additional contract requirement(s) or terms and conditions as determined by the contracting officer are necessary for this acquisition and consistent with customary commercial practices. The associated NAICS code *811210 - Electronic and Precision Equipment Repair and Maintenance*, and the small business size standard is *\$34M*.

FAR DEVIATION STATEMENT: "System updates may lag policy updates. The System for Award Management (SAM) may continue to require entities to complete representations based on provisions that are not included in this solicitation. Contracting officers will rely on representations from offers based on provisions in the solicitation. Entities are not required to, nor are they able to, update their entity registration to remove these representations in SAM."

Responses to this solicitation must include sufficient information to establish the interested parties' bona-fide capabilities of providing the services. The price quote shall include unit price, list price, shipping and handling costs, delivery days after contract award, delivery terms, prompt payment discount terms, F.O.B. Point (Destination or Origin), product or catalog number(s), product description, and any other information or factors that may be considered in the award decision. Such factors may include special features required for effective program performance, trade-in considerations, probable life of the product selected as compared with that of a comparable product, warranty considerations, maintenance availability, and environmental and energy efficiency considerations.

Responses to this solicitation must include clear and convincing evidence of the offeror's capability of fulfilling the requirement as it relates to the technical evaluation criteria. The price proposal/quote must include the labor categories, an estimate of the number of hours required for each labor category, fully loaded fixed hourly rate or each labor category, breakdown and rationale for other direct costs or materials, and the total amount.

The Unique Entity ID (UEI) from SAM.gov, the Taxpayer Identification Number (TIN), and the certification of business size must be included in the response. All offerors must have an active registration in the System for Award Management (SAM) www.sam.gov.